

## 25STCV12848 25STCV12848

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-09-10

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Case Number: 25STCV12848 Hearing Date: September 10, 2026 Dept: 414

25STCV12848

Ronald E. Wilson, et al. v. American Honda Motor Co., Inc.

Thursday, September

10, 2026

TENTATIVE ORDER GRANTING IN

PART AND DENYING IN PART DEFENDANT AMERICAN HONDA MOTOR CO., INC.'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION [Res. No. -7756]

I.

BACKGROUND

Plaintiffs

Ronald Wilson and Tracy Smith-Wilson (collectively, "Plaintiffs") allege that the 2019 Acura TLX ("Acura") they purchased under a warranty contract from Defendant American Honda Motor Co., Inc. ("Honda") suffered from defects and nonconformities to warranty, including but not limited to transmission, engine, and electrical defects.

On May 1,

2025, Plaintiffs filed a complaint against Honda and Does 1 through 10, inclusive, alleging the following causes of action: (1) violation of subdivision (d) of Civil Code section 1793.2; (2) violation of subdivision (b) of Civil Code section 1793.2; (3) violation of subdivision (a)(3) of Civil Code section 1793.2; (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement - concealment.

Honda

moves for summary judgment on the Complaint's five causes of action or, in the alternative, summary adjudication on the grounds that Plaintiffs cannot establish any genuine issue of material fact and cannot prevail as a matter of law.

II.

#### JUDICIAL NOTICE

A.

##### Honda's Request

Honda seeks judicial notice of the Complaint and attached Exhibit A in this case. The request is denied as moot because the Court does not need to take judicial notice of filings on the instant docket.

B.

##### Plaintiffs' Request

Plaintiffs

ask the Court to take judicial notice of Exhibits A-D & F, which include bulletins, ServiceNews Articles, and dealer messages, available on the website of the National Highway Traffic Safety Administration ("NHTSA"). (Request for Judicial Notice, pgs., 2-3; Evid. C. §§ 452, 453.)

The

Court grants Plaintiffs' request for judicial notice as to the Exhibits from the NHTSA website, but only as to the existence of the documents, not as to the truth of any hearsay statements asserted therein.

III.

#### EVIDENTIARY OBJECTIONS

"In

granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion. Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review." (Code Civ. Proc.,

§437c, subd. (q).)

Honda's  
Objections

1.

Declaration of Shannon Duane: Sustained – None |

Overruled: No. 1-3

2.

Declaration of Ronald Wilson: Sustained – Nos.

1, 3-6, 7 (in part on hearsay grounds as to the dealerships' statements only), 9  
(in part on hearsay grounds as to the dealerships' statements only), and 10 |

Overruled – 2 & 8

3.

Declaration of Tracy Smith-Wilson: Sustained –

none | Overruled: Nos. 1-5

IV.

LEGAL STANDARD

The

purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

In

ruling on a motion for summary judgment, the Court must consider all of the evidence and the reasonable inferences drawn from that evidence, viewing both in the light most favorable to the opposing party. As the Supreme Court explained, the court “must consider all of the evidence and all of the

inferences reasonably drawn therefrom [citation] and must view such evidence [citations] and such inferences [citations] in the light most favorable to the opposing party.” (Aguilar, supra, at pp. 844–845 [quotation marks omitted].)

The

moving party bears the initial burden of making a prima facie showing that no triable issue of material fact exists. (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant satisfies this burden by showing that one or more elements of a cause of action cannot be established or that a complete defense exists. (Code Civ. Proc., § 437c, subd. (p)(2).) Once the defendant makes that showing, the burden shifts to the plaintiff to demonstrate a triable issue of material fact. The plaintiff may not rely upon the allegations or denials of the pleadings but instead must “set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Ibid.)

To

establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) If the plaintiff cannot make that showing, summary judgment should be granted. (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

A

motion for summary judgment ordinarily must be heard “no later than 30 days before the date of trial, unless the court for good cause orders otherwise.” (Code Civ. Proc., § 437c, subd. (a)(3).)[1].)

The

motion is being heard on September 10, 2026, with trial set for September 28, 2026, less than 30 days later. The Court previously denied Honda’s ex parte application to advance the hearing or, alternatively, to continue the trial. (Minute Order, July 16, 2026.) Plaintiffs have not objected to the timing of the hearing. Under these circumstances, the Court finds good cause to hear the motion within 30 days of trial.

V.

DISCUSSION[1]

A.

## Statute of Limitations

Honda first argues that Plaintiffs'

Song-Beverly and fraud claims are barred by the applicable statutes of limitations. The Court addresses the Song-Beverly claims and fraud claim separately because they are governed by different accrual rules.

1.

## Song-Beverly Causes of Action

The Song-Beverly Consumer Warranty Act

does not contain its own statute of limitations. An action for breach of warranty under the Act is therefore governed by the four-year limitations period of Commercial Code section 2725. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1305; Com. Code, § 2725, subd. (1).) Ordinarily, a breach of warranty occurs upon tender of delivery. Where, however, a warranty explicitly extends to future performance and discovery of the breach necessarily awaits that performance, the cause of action accrues when the breach is or should have been discovered. (Com. Code, § 2725, subd. (2).)

A manufacturer's promise to repair defects

occurring during a specified future period constitutes an express warranty extending to future performance. (*Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 217.) For such a warranty, the limitations period runs from the time the buyer reasonably concludes that the warrantor will not repair the vehicle. (*Id.* at pp. 218–219.) On summary judgment, a defendant asserting the statute of limitations must negate the applicability of this discovery-based accrual rule. (*Id.* at p. 216.)

An implied warranty is different. It

arises by operation of law and does not promise future performance. (*Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal.App.4th 116, 135.) In the case of a latent defect, the implied warranty is breached by the existence of the defect, not its later discovery. (*Mexia, supra*, 174 Cal.App.4th at p. 1305.) Civil Code section 1791.1, subdivision (c), defines the duration of the implied warranty; it does not transform that warranty into one extending to future performance.

Plaintiff Tracy Smith-Wilson purchased the

new 2019 Acura on August 24, 2018, from Valencia Acura and is the sole buyer identified on the sales contract. (Honda's UMF No. 1.) The Acura came with a four-year/50,000-mile new-vehicle limited warranty and a six-year/70,000-mile powertrain warranty expressly covering the transmission. (Honda's UMF No. 2.) Mr. Wilson testified that the Acura began exhibiting hesitation and harsh shifting within months of purchase and that Plaintiffs sought repairs for transmission problems even before the first documented repair order dated August 22, 2019. (Honda's UMF Nos. 3–4; RW Depo., 21:14–23:7, 31:10–15, 32:15–33:16.)

On August 22, 2019, Mr. Wilson brought the Acura to Valencia Acura with transmission complaints, but the technician found no problem. (Honda's UMF Nos. 5–6; Evans Decl., ¶¶ 3, 5, Exs. A–B; RW Depo., 31:16–32:9.) On September 9, 2019, Mr. Wilson reported to Acura Client Relations that the vehicle was jerking when shifting, appeared to downshift on its own, and had exhibited the problem “from the beginning.” (Honda's UMF No. 8; Pacheco Decl., ¶ 4, Ex. 1.) The dealership nevertheless reported that the vehicle was operating as designed. (Honda's UMF No. 9; Pacheco Decl., ¶ 4, Ex. 1.) In October 2019, Mr. Wilson again complained that the vehicle was revving and would not shift and stated that he was prepared to pursue “all possible channels” to resolve the problem. (Honda's UMF No. 11; Pacheco Decl., ¶ 4, Ex. 1.) A second dealership thereafter test-drove the Acura but found no fault codes. (Honda's UMF Nos. 12–15; Ladouceur Decl., ¶ 3, Ex. A; RW Depo., 34:23–36:14.)

The repair efforts did not end in 2019. On May 7, 2022, Plaintiffs again presented the Acura for the transmission complaint. The dealership performed a TCM software update and idle-learn procedure when the vehicle had approximately 38,820 miles. (Honda's UMF Nos. 20–22; Evans Decl., ¶ 5, Ex. B; RW Depo., 44:3–50:20.) Mr. Wilson testified that the transmission problem persisted after that visit and that he thereafter stopped returning to the dealership because it continued giving him the “same old excuses.” (Honda's UMF Nos. 23–24; RW Depo., 46:8–12, 47:5–48:13.)

a. Express  
Warranty.

This evidence does not establish as a matter of law that Plaintiffs reasonably concluded more than four years before filing suit that Honda would not repair the vehicle. Although Plaintiffs were

unquestionably aware of transmission problems by 2019, awareness of a defect is not necessarily the accrual point for a warranty expressly promising future repairs. Under Krieger, the relevant inquiry is when Plaintiffs reasonably concluded that Honda would not repair the vehicle. (Krieger, *supra*, 234 Cal.App.3d at pp. 218–219.)

Honda's own evidence shows that Plaintiffs continued seeking warranty repairs and that Honda continued attempting repairs through May 7, 2022. A reasonable trier of fact could therefore conclude that Plaintiffs did not reasonably determine that Honda would not repair the transmission until that final repair attempt failed. If the claim accrued on May 7, 2022, the four-year limitations period would not expire until May 7, 2026. Plaintiffs filed this action on May 1, 2025. Because the evidence does not compel an accrual date more than four years before the Complaint was filed, Honda has not established its statute of limitations defense to the express warranty claims as a matter of law. The motion for summary adjudication of the first cause of action on statute of limitations grounds is therefore DENIED.

b. Implied  
Warranty.

The fourth cause of action stands differently because the implied warranty does not extend to future performance. Plaintiffs purchased the Acura on August 24, 2018. (Honda's UMF No. 1.) Under Commercial Code section 2725, the four-year limitations period ordinarily ran from tender of delivery and expired on August 24, 2022. Even assuming, in Plaintiffs' favor, that the period did not begin until August 24, 2019—the end of the one-year implied warranty period—the limitations period expired on August 24, 2023. Plaintiffs did not file the Complaint until May 1, 2025.

Plaintiffs argue that Honda has not established when they discovered or reasonably should have discovered the latent defect. (Opp., p. 15.) That argument conflates the accrual rules governing express and implied warranties. Unlike an express warranty extending to future performance, an implied warranty is breached by the defective condition of the goods, and discovery of a latent defect does not postpone accrual under Commercial Code section 2725. (Mexia, *supra*, 174 Cal.App.4th at p. 1305.)

Plaintiffs also allege generally that

equitable tolling, delayed discovery, equitable estoppel, the repair rule, and class-action tolling apply. (Compl., ¶ 23.) They do not, however, identify evidence or develop an argument establishing that any of those doctrines renders the implied warranty claim timely. The undisputed dates therefore establish that the fourth cause of action was filed outside the applicable four-year limitations period. Accordingly, the motion for summary adjudication as to the fourth cause of action is GRANTED.

#### B. Second

Cause of Action: Section 1793.2, subdivision (b)

Plaintiffs' second cause of action alleges that Honda violated Civil Code section 1793.2, subdivision (b), which requires a manufacturer to commence necessary warranty repairs within a reasonable time and, absent a written agreement otherwise, to service or repair the goods to conform to the applicable warranties within 30 days. (Civ. Code, § 1793.2, subd. (b).)

Honda

argues that there is no evidence that any repair of the Acura exceeded 30 days. (Mot., p. 10.) In discovery, Honda asked Plaintiffs to identify the total number of days they were unable to use the Acura because it was being repaired. (Honda's UMF Nos. 27–28; Chong Decl., Ex. C.) Plaintiffs objected and referred generally to the Complaint and the Acura's repair history. (Ibid.) Honda also requested documents concerning the number of days the vehicle was unavailable while being serviced or repaired. Plaintiffs again asserted objections and stated that they would produce responsive, nonprivileged documents in their possession. (Honda's UMF Nos. 27–28; Chong Decl., Ex. D.)

The repair records likewise do not identify a repair exceeding the statutory period. It is undisputed that the Acura was at the repair facility for only one day on August 22, 2019, October 24, 2019, November 4, 2019, and May 7, 2022. (Honda's UMF Nos. 6, 15, 18, 21.) Honda's exhibits document the remaining presentations, each of which also lasted only one day. (P.'s UMF No. 10; Evans Decl., Ex. B; Ladouceur Decl., Ex. A.) Honda has therefore presented evidence establishing that none of the identified repair visits exceeded 30 days.

Plaintiffs

respond that Honda's separate statement addresses only six of the seventeen presentations reflected in Honda's own exhibits and argue that the duration and number of repair attempts therefore cannot be resolved on summary adjudication. (Opp., p. 12.) The argument does not create a triable issue. The remaining presentations appear in Honda's exhibits, and those records likewise reflect one-day visits. (P.'s UMF No. 10; Evans Decl., Ex. B; Ladouceur Decl., Ex. A.) Plaintiffs identify no evidence of any presentation during which the Acura remained unavailable for repair for more than 30 days.

Plaintiffs separately contend that the May 7, 2022, repair may not actually have been completed. According to Plaintiffs, the technician recommended a TCM software update, while the repair order reflects only that an idle-learn procedure was performed. Plaintiffs argue that a jury could therefore find that the prescribed repair was never completed and that the vehicle's same-day return did not satisfy section 1793.2, subdivision (b). (Opp., p. 12.) But Plaintiffs identify no affirmative evidence establishing that the recommended repair was not performed or that the Acura remained in Honda's possession, or otherwise unavailable to Plaintiffs for repair, beyond the one-day period reflected in the repair record. Their contention that the repair may have been incomplete does not, without supporting evidence, establish a triable issue as to whether Honda violated the 30-day requirement asserted as the basis for this cause of action.

Accordingly, Honda has established that the identified repairs did not exceed the statutory period, and Plaintiffs have not produced evidence creating a triable issue on that point. The motion for summary adjudication as to the second cause of action is GRANTED.

### C. Third

Cause of Action: Section 1793.2, subdivision (a)(3)

Plaintiffs' third cause of action alleges that Honda violated Civil Code section 1793.2, subdivision (a)(3), which requires a manufacturer that has made an express warranty to "[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." (Civ. Code, § 1793.2, subd. (a)(3).)

Honda argues that Plaintiffs have no evidence identifying any service literature or replacement parts that Honda

failed to make available or any repair that could not be effected because of such a failure. (Mot., pp. 10–11.) In response to Special Interrogatory No. 35, which asked Plaintiffs to state all facts supporting this cause of action, Plaintiffs asserted objections and referred generally to the Complaint and the Acura's repair history. (Honda's UMF Nos. 31–32; Chong Decl., Ex. C.) Similarly, when asked to produce documents supporting the claim, Plaintiffs asserted objections and stated that they would produce responsive, nonprivileged documents in their possession. (Honda's UMF Nos. 31–32; Chong Decl., Ex. D.) Neither response identifies particular service literature or replacement parts that Honda failed to make available to its authorized repair facilities.

Plaintiffs contend that Honda's own repair records nevertheless create a triable issue. They identify two instances in which a dealership did not have a particular part immediately in stock. On October 24, 2019, Mr. Wilson presented the Acura for repair and returned on November 4, 2019, for installation of a driver-side rear door inner-handle pocket trim piece that was not then in stock. (Opp., p. 13; Ladouceur Decl., ¶ 3, Ex. A.) On June 23, 2022, a dealership identified a leaking evaporative-emissions purge valve, ordered the part, and installed it when Mr. Wilson returned four days later on June 27. (Opp., p. 13; Evans Decl., ¶ 5, Ex. B.)

These circumstances do not create a triable issue under section 1793.2, subdivision (a)(3). Neither part concerns the transmission defect upon which Plaintiffs predicate their claims. More fundamentally, the fact that a dealership did not have a particular replacement part physically in stock on the day a vehicle was presented does not, without more, establish that the manufacturer failed to “make available” sufficient replacement parts to effect warranty repairs. In both instances identified by Plaintiffs, the necessary part was obtained, and the repair was subsequently performed. Plaintiffs identify no evidence that Honda failed to supply a requested part, that a part was unavailable from Honda, or that an authorized repair facility was unable to effect a repair because Honda had failed to make sufficient replacement parts available.

Plaintiffs also rely on Safety Recall 24-002 and note that the recall procedure was performed on the Acura on October 21, 2024. (Opp., p. 13; Duane Decl., ¶ 14, Ex. J; Evans Decl., ¶ 5, Ex. B.) That evidence likewise does not establish a violation of subdivision (a)(3).

Plaintiffs identify no evidence that an authorized repair facility lacked the service literature or replacement parts necessary to perform the recall procedure. To the contrary, Plaintiffs acknowledge that the procedure was performed on their Acura.

Thus, the evidence identified by Plaintiffs does not establish that Honda failed to make sufficient service literature or replacement parts available to its authorized repair facilities. At most, it establishes that two particular parts were not physically present at a dealership when the vehicle was initially presented and had to be ordered. Plaintiffs cite no authority construing section 1793.2, subdivision (a)(3), as requiring every authorized repair facility to maintain every potentially necessary replacement part in its on-site inventory at all times. Accordingly, Plaintiffs have not demonstrated a triable issue of material fact as to whether Honda violated Civil Code section 1793.2, subdivision (a)(3). The motion for summary adjudication as to the third cause of action is GRANTED.

#### D. Fifth

##### Cause of Action: Fraudulent Inducement – Concealment

Plaintiffs' fifth cause of action alleges

Fraudulent Inducement – Concealment against Honda. "The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact." (*Hambrick v. Healthcare Partners Medical Group, Inc.* (2015) 238 Cal.App.4th 124, 162.)

Honda argues that Plaintiffs' fraudulent concealment claim fails as a matter of law because: (1) Plaintiffs have no evidence of concealment; (2) Honda had no duty to disclose additional information to Plaintiffs; (3) any affirmative misrepresentation theory fails; and (4) *Rattagan v. Uber*

*Technologies, Inc.* (2024) 17

Cal.5th 1, bars the claim under the economic loss doctrine. (Mot., at pp. 13-20.)

1.

Honda's

Knowledge of Alleged Defect

An essential element of intentional

concealment includes the duty to disclose, which must be based upon a

transaction, or a special relationship, between plaintiff and

defendant. (*Bigler-Engler v. Breg, Inc.* (2017) 7

Cal.App.5th 276, 311.) "There are 'four circumstances in which nondisclosure or

concealment may constitute actionable fraud: (1) when the defendant is in a

fiduciary relationship with the plaintiff; (2) when the defendant had exclusive

knowledge of material facts not known to the plaintiff; (3) when the defendant

actively conceals a material fact from the plaintiff; and (4) when the

defendant makes partial representations but also suppresses some material

facts.'" (*Ibid.*) "[O]ther than the first instance, in

which there must be a fiduciary relationship between the parties, 'the other

three circumstances in which nondisclosure may be

actionable presuppose[ ] the existence of some other relationship

between the plaintiff and defendant in which a duty to disclose can arise... "[W]here

material facts are known to one party and not to the other, failure to disclose

them is not actionable fraud unless there is some relationship between the

parties which gives rise to a duty to disclose such known facts."

[Citation.]' [Citation.]" (*Hoffman v. 162 North Wolfe LLC* (2014)

228 Cal.App.4th 1178, 1187 (*Hoffman*).) "Such a transaction must

necessarily arise from direct dealings between the plaintiff and the defendant;

it cannot arise between the defendant and the public at large." (*Bigler-Engler*,

*supra*, 7 Cal.App.5th at p. 312.)

Plaintiffs allege as follows. Honda knew

that the 9-speed transmission in the Acura was defective but failed to disclose

this fact prior to and at the time of the sale. (Compl., ¶ 47.) These defects include: "(1) hesitation

or delayed acceleration, (2) harsh or hard shifting, (3) jerking, (4)

shuddering, or juddering; (5) surging and/or inability to control the vehicle's

speed, acceleration, or deceleration, (6) symptoms requiring reprogramming of

the transmission control module ("TCM") and/or powertrain control

module ("PCM"), (7) failure or replacement of the transmission

("Transmission Defect")." (*Id.*, ¶

48.) Honda knew of said defects through "pre-production and post-production

testing data; early consumer complaints about the Transmission Defect made

directly to Defendant HONDA and its network of dealers; aggregate warranty data compiled from Defendant HONDA's network of dealers; testing conducted by Defendant HONDA in response to these complaints; as well as warranty repair and part replacements data received by Defendant HONDA from Defendant HONDA's network of dealers.” (Id., ¶

49.) On information and belief, Plaintiffs claim that Honda knew of the transmission defect and its safety risks but failed to disclose them. (Id., ¶ 51.) Had Plaintiffs known, they would not have purchased the Subject Vehicle. (Id.)

Honda puts forth the following interrogatory responses in support of its argument that Plaintiffs have put no admissible evidence into the record to support their concealment theory: Special Interrogatory No. 23 seeks “all facts that support [Plaintiffs’] claim for fraudulent concealment; No. 24 asks Plaintiffs to identify all documents supporting said claim; No. 27 asks them to state all facts supporting their claim that an individual agent of Honda engaged in fraudulent conduct in relation to their purchase of the Acura; No. 28 asks them to state all facts supporting their claim that Honda concealed any information from Plaintiffs’ at or before the time they bought the Acura; No. 29 asks them to specifically describe what they contend Honda should have disclosed; and No. 30 asks them to state the amount of all damages they claim Honda is responsible for in relation to the fraud cause of action. (Honda’s UMF Nos. 36-37; Chong Decl., ¶ 3, Ex. A.) In response, “Plaintiffs identified no information or documents showing AHM had knowledge of any alleged transmission defect before they bought the Acura TLX, much less that it concealed any defect.” (Id.) Plaintiffs do not dispute this fact.

The Court finds that Honda failed to meet its burden of showing that Plaintiffs cannot establish that Honda had prior knowledge of the defect. Honda argues that the Plaintiffs’ discovery responses were deficient, which on its own is an insufficient argument. To show that the challenged cause of action cannot be established, a defendant must also introduce evidence demonstrating that the “plaintiff not only does not have but cannot reasonably expect to obtain a prima facie case. (Addy v. Bliss & Glennon (1996) 44 Cal.App.4th 205, 214 (Addy) (emphasis added).) Honda fails to present any evidence showing that the Plaintiffs cannot reasonably expect to obtain a prima facie case for fraudulent inducement.

In response, Plaintiffs produced the NHTSA documents noted above, that suggest that Honda knew of related transmission issues years before and after the Acura's purchase date. (Duane Decl., Exs. A-D, F.) The Court finds that these documents are material to the instant case because: (1) they involve the same defect alleged, the vehicle's transmission; (2) they were in the possession of Honda (contain Honda's Copyright Registration Notice); and (3) the age of the documents suggest that Honda had notice of the defects before the vehicle in question in this lawsuit was manufactured or sold.

The Court finds that this material difference in fact speaks directly to the first element of the fraudulent inducement claim. Because these purported deficiencies were known to Honda well before the Acura was manufactured, it remains disputed as to whether Honda concealed or suppressed the deficiency. (See *Bank of America Corp, et al., v. Superior Court* (2011) 198 Cal.App.4th 862, 870).

2.

Duty  
to Disclose

Honda next argues that Plaintiffs have failed to provide evidence of a relationship with Honda. (Mot., at pp. 14-15.) Honda points to *Bjoin v. J-M Mfg. Co.* (2025) 113 Cal.App.5th 884, 901-902, in which the Court of Appeal found that direct dealings between the parties are necessary to create a duty to disclose. (Id.)

There is no universal duty to disclose. For a defendant to be under a duty to disclose a material fact to the plaintiff, they must have had a relationship. There are two relationships between parties that can support a duty of disclosure: a fiduciary relationship or a relationship that "c[a]me into being as the result of some sort of transaction between the parties" — more succinctly, a "transaction-based relationship." (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336-337 (*LiMandri*); *Hoffman v. 162 North Wolfe LLC* (2014) 228 Cal.App.4th 1178, 1192 (*Hoffman*).) There

are 'four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.' (LiMandri, supra, 52 Cal.App.4th at pg. 336.)

Honda contends that Plaintiffs did not engage in a direct transaction with it because they purchased the Acura from an independently owned and operated dealership, Valencia Acura. (Mot., at p. 14; Honda's UMF No. 1.)

The Parties do not dispute that Plaintiffs purchased the Acura from Valencia Acura. (Honda's UMF No. 1.) Honda submits the Retail Installment Sale Contract ("RISC"). (Evans Decl., Ex. A.) The Court notes that in the RISC, Plaintiff Tracy M. Smith-Wilson is named as the "Buyer" and the "Seller-Creditor" is listed as Valencia Acura. (Id.) Thus, the uncontested record shows that the Plaintiffs bought the Acura from Valencia Acura, not directly from Honda.

Honda carries its burden to establish that there was no fiduciary or transactional relationship between the parties that gave rise to a duty to disclose facts as Honda is the manufacturer while Plaintiffs only entered into a contract with a third-party retailer. (See Hoffman, supra, 228 Cal.App.4th at 1187.)

In opposition, Plaintiffs must allege that Honda knew of the alleged defect before the sale or lease of the vehicle, and that the defendant was unable or unwilling to fix it. (Santana v. FCA (2020) 56 Cal.App.5th 334) [reversing a judgment for plaintiff since the record showed no substantial evidence that the defendant was aware of the alleged defect and thus could not have concealed it from plaintiff at the time of sale.)

Plaintiffs rely on Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, in opposition to support their assertion that "[a] manufacturer that issues a written

warranty to the consumer, authorizes dealerships to sell and service its vehicles on its behalf, and exercises control over warranty repairs stands in a relationship sufficient to support a duty to disclose material facts about the product.” (Opp., at p. 16.)

A cursory review shows that there are several distinctions between this matter and the facts assumed in Dhital. Dhital found that the plaintiffs’ statutory warranty claims under the Song-Beverly Act were the equivalent of contract claims for the purposes of determining whether the economic loss rule applies; This did not, however, establish a duty to disclose. (Dhital, 84 Cal. App. 5th at 838, fn. 3.) Only later in its decision did the Dhital court state that the plaintiffs’ allegations were sufficient to overcome the defendant’s argument that there was no buyer-seller relationship giving rise to a duty to disclose. (Id. at 844.)

The most important considerations are that the instant case is at the Summary Judgment/Adjudication phase, not the pleading phase, and, as noted above, the record

is replete with facts, some of which are uncontested: The Parties do not dispute that Plaintiffs purchased the Acura from Valencia Acura. (Honda’s UMF No. 1.) Honda submits the Retail Installment Sale Contract (“RISC”). (Evans Decl., Ex. A.) The Court notes that in the RISC, Plaintiff Tracy M. Smith-Wilson is named as the “Buyer” and the “Seller-Creditor” is listed as Valencia Acura. (Id.) Thus, the uncontested record shows that the Plaintiffs bought the Acura from Valencia Acura, not directly from Honda.

Plaintiffs fail to present

any additional facts concerning the relationship between Honda and themselves. Plaintiffs reference to marketing and advertisements are unpersuasive. (See Bjoin v. J-M Mfg. Co., 113 Cal.App.5th 884, 902

[“Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (internal citation omitted)].) The Court of Appeals in Bjoin specifically rejected the argument that a manufacturer’s advertising

or profits from downstream sales create a fiduciary and/or transaction relationship. (Ibid.) As to the phone call and communications between Plaintiff Ronald Wilson and Acura Client Relations in September & October 2019, Plaintiff fails to offer evidence that the couple communications

established a fiduciary relationship. (P.s' Response to UMF Nos. 8-11.)

Accordingly, the Court finds that

Plaintiffs have failed to meet their burden to establish that Honda owed them a duty to disclose the alleged defects at the time of purchase. The motion for summary adjudication as to the fifth cause of action is GRANTED. The Court, however, considers the merits of Honda's other arguments, as well.

3.

Affirmative

Misrepresentation

Honda argues that Plaintiffs' Complaint

fails to allege Honda made any affirmative misrepresentations to Plaintiffs; thus, summary adjudication is warranted. (Mot., at p. 15.)

The Court finds this argument to be

unpersuasive and irrelevant because Plaintiffs' claim is for fraudulent inducement – concealment, not fraudulent misrepresentation. Plaintiffs have not put forth an affirmative misrepresentation theory or claim.

4.

Economic Loss Rule under Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1

Honda

argues that the Supreme Court's holding in Rattagan independently bars Plaintiffs' fraud claim, because "the elements of the claim cannot be established independent of the parties' contractual rights and obligations and because the alleged tortious conduct did not expose Plaintiff to a risk of harm beyond the reasonable contemplation of the parties when they entered into the contract." (Rattagan, supra, 17 Cal.5th at 1; Mot., at pp. 16-20.)

"In

general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (Rattagan, supra, 17 Cal.5th at p. 20.) The Rattagan court set forth a two-part inquiry as to whether the economic loss rule bars contractual fraud causes of action:(1) "A plaintiff must first demonstrate the

defendant's injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. ... [and (2)] the defendant's conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed." (Id. at pp. 20–21.)

Under the Economic Loss Rule, fraudulent concealment, occurring in the course of a contractual relationship, may be conduct independent of the contractual rights, where the risk of harm went beyond the reasonable contemplation of the parties. (Rattagan, *supra*, 17 Cal.5th at p. 13.)

Nevertheless, there is a core distinction between a tort committed during an ongoing contractual relationship (which may, or may not, be barred by the economic loss rule) and a tort committed in the formation of a contract. When one party commits fraud during contract formation, the injured party may recover in both tort (for the fraudulent inducement) and in contract (by affirming the contract. (Harris v. Atlantic Richfield (1993) 14 Cal.App.4th 70, 77 (Harris).) Allowing recovery in tort for fraudulent inducement to enter a contract does not interfere with parties' freedom to bargain over economic risk. The fundamental nature of a fraudulent inducement claim is that the parties were not able to properly bargain over economic risk because an initial transaction was induced by fraud. (See Id.)

As to the first Rattagan requirement, Honda argues that the basis of Plaintiffs' claim was pre-contemplated under the express warranty at issue; thus, "[b]ecause Plaintiff[s] cannot prove any sort of fraud without showing a warranty breach, the claims are not independent." (Mot., at p. 19.) In addition, "Plaintiffs did not suffer any injury unless they received a vehicle that was both defective and not repairable under the warranty." (Id.) Therefore, Plaintiffs' fraud claim cannot satisfy the first prong.

As to the second requirement, Honda argues that its warranty expressly disclosed the risk of harm at issue – a defective vehicle. (Mot., at pp. 19-20.)

Based

on the foregoing and following, the Court finds that Honda has met its initial burden to establish a defense to Plaintiffs' fifth cause of action. Plaintiffs' fraud allegations pertain to the allegedly defective 9-speed transmission that was contemplated under the power-train warranty at issue. (Compl., ¶¶ 46-57.) In addition, Plaintiffs' alleged damages are purely monetary: "Plaintiffs were harmed by purchasing a vehicle that Plaintiffs would not have leased and/or purchased had Plaintiffs known the true facts about the Transmission Defect." (Compl., ¶ 57.) Plaintiffs do not allege physical injuries due to the alleged defects. The burden thus shifts to Plaintiffs to produce substantial responsive evidence to show that a triable issue of material fact remains.

In

opposition, Plaintiffs primarily rely on the holding in *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, to support their contention that "the economic loss rule does not bar a claim for fraudulent inducement by concealment in the sale of a defective vehicle." (Opp., at p. 18.) Plaintiffs argue that *Rattagan* does not reach the claims here because the alleged concealment occurred before the contract's formation and the injury is "that Plaintiffs would not have purchased the vehicle at all had they known what AHM knew." (Id.)

In *Dhital*,

the Court of Appeal found that the plaintiffs' fraudulent inducement claim was not barred by the economic loss rule, because the plaintiffs sufficiently alleged fraudulent conduct that was independent of the defendant vehicle manufacturer's alleged warranty breaches. (84 Cal.App.5th at 843.) The Court of Appeal, however, expressly left open the possibility that, based "on the evidentiary record developed at summary judgment or trial, a fraudulent inducement claim could be found not to be independent of a plaintiff's contract or warranty claims." (*Dhital*, supra, 84 Cal.App.5th at 842, fn.5 [The Supreme Court dismissed review and remanded after deciding *Rattagan*].) Notably, the Court of Appeal concluded that the allegations were sufficient in *Dhital* because: "Plaintiffs alleged that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers." (*Dhital*, 84 Cal.App.5th at 844.) Here, while Plaintiffs allege that they purchased the Acura from Honda's authorized dealership, they do not allege, as in *Dhital*, that the dealer was Honda's authorized agent. (Compl., ¶¶ 16, 49, Ex. A.)

Plaintiffs

failed to offer evidence of direct dealings with Honda and did not allege harm independent of their disappointed expectations concerning the Acura's condition and warranty performance. Plaintiffs have not alleged personal injury or damage to property other than the Acura. Plaintiffs only seek economic losses associated with the allegedly defective Acura. Based on the foregoing, the Court finds that Plaintiffs fail to offer competent evidence of independent pre-sale fraud; thus, Plaintiffs have failed to meet their responsive evidentiary burden to show that a triable issue remains as to whether the fifth cause of action is barred by the economic loss rule.

Accordingly, the

Court finds that the fifth cause of action is independently barred by the economic loss rule under Rattagan.

#### E. Continuance

Plaintiffs

request a continuance to permit them to complete the deposition of Honda's PMQ.

"In seeking a continuance of a summary judgment motion, a plaintiff has essentially two options." (Hamilton v. Orange County Sheriff's Dept. (2017) 8 Cal.App.5th 759, 764.) First, a plaintiff can seek a mandatory continuance under Code of Civil Procedure Section 437c subdivision (h), which states: "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due." (Code Civ. Proc., § 437c, subd. (h).) Second District precedent holds, "A declaration in support of a request for continuance under section 437c, subdivision (h) must show: '(1) the facts to be obtained are essential to opposing the motion; (2) there is reason to believe such facts may exist; and (3) the reasons why additional time is needed to obtain these facts. [Citations.]'" (Cooksey v. Alexakis (2004) 123 Cal.App.4th 246, 254.)

Second,

"[w]here a plaintiff cannot make the showing required under section 437c,

subdivision (h), a plaintiff may seek a continuance under the ordinary discretionary standard applied to requests for a continuance” which “requires a showing of good cause.” (Hamilton, supra, 8 Cal.App.5th at p. 765.) “[I]n deciding whether to continue a summary judgment to permit additional discovery courts consider various factors, including (1) how long the case has been pending; (2) how long the requesting party had to oppose the motion; (3) whether the continuance motion could have been made earlier; (4) the proximity of the trial date or the 30-day discovery cutoff before trial; (5) any prior continuances for the same reason; and (6) the question whether the evidence sought is truly essential to the motion.’ [citation.]” (Ibid.)

Plaintiffs

have not filed any affidavit alongside their opposition, nor have they included a signed declaration that includes an amended notice of deposition for Honda's PMQ. Plaintiffs have not put forth any argument in support of continuance; the request is merely thrown in at the end of the opposition's conclusion. (Opp., at p. 20.) Plaintiffs' counsel does not mention the continuance in her declaration either.

Plaintiffs

fail to present sufficient evidence to show they are entitled to a continuance of this motion. Plaintiffs therefore fail to establish why they believe additional facts exist to support their opposition. The request for a continuance is DENIED.

VI.

CONCLUSION

Based on the foregoing, Honda's motion for summary judgment is DENIED. Honda's motion for summary adjudication as to the second, third, fourth, and fifth causes of action is GRANTED. Honda's motion for summary adjudication as to the first cause of action is DENIED.

Honda is ordered to give notice.

[1] In

opposition, Plaintiffs argue that Honda's motion is procedurally defective because it only addresses the transmission defects and not the engine and electrical defects. The Court finds Plaintiffs' argument unpersuasive. The engine

and electrical defects are only mentioned a single time, in paragraph 11 of the Complaint, in a general, kitchen-sink sentence. The pleadings "delimit the scope of the issues," so Honda needed only to negate the theories actually and adequately framed by the Complaint. (*Lee v. Bank of Am.*, 27 Cal.App.4th 197, 216.) Thus, Plaintiffs cannot defeat the motion by resting on defects (i.e. the engine and electrical defects) pleaded too thinly to raise.